



Code: GCPD-AR  
Revised/Reviewed: 7/21/21

## **Discipline and Dismissal of Staff**

The Board will use due process and comply with all relevant portions of state and/or federal law, as applicable, when disciplining and/or dismissing employees.

### **Discipline**

Discipline may be in the form of verbal reprimand, written reprimand or suspension depending on the circumstances of each case. Staff members will be disciplined, when in the sole discretion of the administrator/principal or designee, such action is warranted. The level of any discipline issued shall also be at the sole discretion of the administrator/principal or designee and will be based on the severity and frequency of the conduct at issue.

1. “Verbal Reprimand”: The administrator/principal will hold a conference with the employee. The administrator/principal will outline the nature of the problem and consider any comments from the employee. The administrator/principal will indicate compliance with specified procedures or cessation of certain conduct is required and future consequences if the employee fails to follow the directives given as expected. A notation of the date of the conference, the individual(s) present and the points discussed at such conference shall be maintained in the administrator/principal’s working files.
2. “Written Reprimand”: The administrator/principal will hold a conference with the employee. The administrator/principal will outline the nature of the problem and consider any comments from the employee. If after considering the comments presented by the employee, the administrator/principal determines a written reprimand is appropriate, they will outline in a written “letter of reprimand” compliance with specified procedures and/or notate that cessation of certain conduct is required and/or the future consequences if the employee fails to follow any directives given as expected. The “letter of reprimand” issued shall be placed in the employee’s personnel file. The employee may choose to submit a letter of rebuttal regarding the “letter of reprimand” received; and if submitted, such rebuttal shall be placed in the employee’s personnel file.
3. “Suspension with Pay”: Employees may be suspended with pay in order to maintain the health and/or safety of other employees and/or students and pending the outcome of any related investigation. Employees may also be suspended with pay pending the outcome of an investigation of complaints regarding their job performance or conduct. Any such investigation shall be conducted promptly.
4. “Suspension without Pay”: As a result of disciplinary actions against an employee, an employee may be suspended without pay. In any such instance, the administrator/principal will hold a conference with the employee. The employee shall be given advance notice of the conference, the level of discipline being considered and the reason(s) such discipline is being considered.

If so requested by the employee, the employee may have a representative present of their choice. However, such representative may not be a school employee who is “on-duty” at the time of the conference.

During the conference, the administrator/principal will outline the specific reason(s) for the conference including any findings reached during the school's related investigation. Comments from the employee concerning the information presented must be considered. A second meeting with the employee may be required so that in the interim, the administrator/principal can properly consider the employee's comments and any new information presented.

If after considering the comments presented by the employee the administrator/principal determines an unpaid suspension is appropriate, the administrator/principal will outline in a written "letter of reprimand/suspension," compliance with specified procedures and/or notate that cessation of certain conduct is required and/or the future consequences if the employee fails to follow any directives given as expected. The "letter of reprimand/suspension" issued shall be placed in the employee's personnel file. The employee may choose to submit a letter of rebuttal regarding the "letter of reprimand/suspension" received, and if submitted, such rebuttal shall be placed in the employee's personnel file.

### **Dismissal**

In the event dismissal is deemed warranted, the administrator/principal will hold a conference with the employee. The employee shall be given advance notice of the conference, the level of discipline being considered and the reason(s) such discipline is being considered.

If so requested by the employee, the employee may have a representative present of their choice. However, such representative may not be a school employee who is "on-duty" at the time of the conference.

During the conference, the administrator/principal will outline the specific reason(s) for the conference including any findings reached during the school's related investigation and any previous related discipline issued. Comments from the employee concerning the information presented must be considered. A second meeting with the employee may be required so that in the interim, the administrator/principal can properly consider the employee's comments and any new information presented.

If after considering the comments presented by the employee it is determined dismissal is appropriate, the administrator/principal will notify the employee in writing of such determination. This "letter of dismissal" will outline the specific reasons for the determination reached; include any supporting information considered; and any related discipline issued to the employee in the past. This letter shall be placed in the employee's personnel file. The employee may choose to submit a letter of rebuttal regarding the "letter of dismissal" received, and if submitted, such rebuttal shall be placed in the employee's personnel file.

### **Illness/Other Circumstances**

Illness and/or other circumstances which prevent an employee from performing the essential functions of his/her position as expected must be considered by the school prior to disciplining or dismissing the employee. Depending on the specific situation in question, state and/or federal law may require additional procedures and/or considerations and may limit the school's ability to discipline and/or dismiss an employee.

### **Wages**

Whenever an employee is dismissed or where such employment is terminated by mutual agreement, all wages earned and unpaid at the time of discharge or termination shall be payable no later than the end of the first business day after discharge or termination.